

**Tentative Rulings and Resolution Review Hearings  
July 20, 2026  
Department 64**

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website ([www.shasta.courts.ca.gov](http://www.shasta.courts.ca.gov)) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

**\*\*\*IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.\*\*\***

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to speaking with the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

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**8:30 a.m. Law and Motion**

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**BLY, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.**

**CASE NUMBER: 25CV-0209458**

**Tentative Ruling on Motion to Deem RFAs Admitted:** Plaintiffs Laura Bly, Julie Dowell, and David Eatchell, individually and as successors-in-interest to the Estate of Bettie Eatchell seek an order to deem all matters set forth in Plaintiffs' Requests for Admission to Defendants Marquis Care at Shasta, Marquis Companies 1, Inc., Rose Hervagault, Phillip Fogg, Jr. and Lauri Cruz admitted.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and email and Defendant has failed to respond within the required time frame.

Defendants' Opposition concedes that responses were not timely served. Defendants represent that they intend to serve verified responses to the RFAs that are in substantial compliance with CCP 2033.330 before the hearing on this motion. There is no evidence before the Court that they have done so.

Monetary sanctions are mandatory per CCP 2033.280(c). Plaintiff did not request sanctions and did not provide evidence to support the Court's determination of a reasonable amount. Therefore, no sanctions will be imposed.

Plaintiffs' Motion to Deem Requests for Admission, Set One Admitted by Defendants is **GRANTED**. A proposed order has been lodged and will be executed.

**CAPITAL ONE, N.A. VS. WHITMIRE VAZQUEZ**

**CASE NUMBER: 23CVG-01238**

**Tentative Ruling on Order to Show Cause Re Sanctions:** An Order to Show Cause Re: Sanctions ("OSC") issued on June 3, 2026, to all parties and counsel for failure to appear on April 27, 2026. After the failure to appear, but before this OSC issued, Defense counsel filed a proof of service of their Order Granting Attorney's Motion to be Relieved as Counsel. Additionally, Plaintiff has filed a satisfactory Declaration in response to the OSC. Therefore, the OSC is VACATED as to all parties and counsel. Sanctions will not be imposed. This matter is ready to be reset for trial. Defendant is now proceeding in pro per. This matter is set for review regarding trial setting on **Monday, August 24, 2026 at 9:00 a.m. in Department 64**. Plaintiff is ordered to give Defendant notice and to file a proof of service of that notice. No appearances are necessary on today's calendar.

**DURBIN, SR, ET AL. VS. MOHAMMADI, ET AL.**

**CASE NUMBER: 25CV-0208902**

**Tentative Ruling on Motion to Use Settled Statement:** Plaintiff/Appellant William Durbin, Sr. moves for an order permitting the use of a settled statement pursuant to California Rules of Court Rule 8.137. Defendant opposes the Motion.

There is no dispute between the parties that a settled statement should be used in this matter. No reporter's transcript is available because the oral proceedings in the superior court were not reported by a court reporter. The dispute on this Motion concerns only the contents of the settled statement. Defendants object to the Proposed Settled Statement filed by Plaintiff concurrently with this Motion on the grounds that it is deficient, incomplete and inaccurate. Defendants have not submitted any proposed amendments or alternative proposed settled statement.

California Rules of Court Rule 8.137 sets forth the procedure for certifying a settled statement. CRC 8.137(c)(2) provides: “Appellants who are not represented by an attorney are encouraged to file their proposed statement on *Proposed Statement on Appeal (Unlimited Civil Case)* (form APP-014). The court may order an appellant to use form APP-014.”

The Court **ORDERS** Appellant to file and serve a Proposed Settled Statement on Appeal using Judicial Council Form APP-014 no later than 10 days after today’s hearing. Respondent will then have 20 days to serve and file proposed amendments pursuant to CRC 8.137(e). No later than 10 days after Respondent files proposed amendments or the time to do so expires, whichever is earlier, a party may request a hearing to review and correct the proposed statement pursuant to CRC 8.137(f). The Court will then follow the procedures set forth in CRC 8.137 as required.

The Motion is **GRANTED** in part, in that the Court orders the use of a Settled Statement. The Motion is **DENIED** with respect to the Proposed Settled Statement filed concurrently with the Motion. The parties are ordered to proceed as detailed above. This matter is set for review regarding status of the Settled Statement on **Monday, August 24, 2026, at 9:00 a.m. in Department 64.**

**IN RE: FURTADO**

**CASE NUMBER: 26CV-0210015**

**Tentative Ruling on Petition for Change of Name:** Petitioner Michelle Furtado seeks to change the name of her minor son. Proof of publication is on file. However, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file.

Petitioner has filed a Declaration detailing her efforts to locate and serve the father. The Court has considered the Declaration and finds that Petitioner has made reasonable efforts to locate and serve the father without success. The evidence establishes that the father is traveling extensively outside of the country with no known contact information or consistent residence address. Therefore, the Court finds that notice by publication is the best available method and is reasonably calculated to give actual notice to the non-consenting parent.

All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

**GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.**

**CASE NUMBER: 25CV-0209491**

**Tentative Ruling on Motion to Continue Trial Date:** Defendants Redding Senior Living, LLC, dba Hilltop Springs Senior Living; Mosaic Management, Inc. and Propero III Redding, LLC move for an order granting their motion to continue trial on the grounds that good cause exists pursuant to California Rules of Court Rule 3.1332(c) and (d). Plaintiffs Thomas Gerosin, Linda Mariano, Brenda Probst, and Michael Gerosin as individuals and as successors-in-interest to Betty Gerosin oppose the Motion.

Merits. “To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain.” CRC 3.1332(a). “Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance.” CRC 3.1332(c).

The matter is currently set for trial on November 17, 2026. Defendants argue there is good cause to continue the trial date because defense counsel is unavailable due to maternity leave, which is scheduled from September 25, 2026 through February 26, 2027. Defendants also cite the need to complete discovery. Defendants request a new trial date in May or June 2027. Plaintiffs argue that Plaintiff Thomas Gerosin, who is 91 years old, will be prejudiced by a continuance due to his age. Plaintiffs also argue Defendants have not been diligent in completing discovery.

Pursuant to CRC 3.1332(d) in ruling on a motion or application for continuance, the Court must also consider all the facts and circumstances that are relevant to the determination. These may include:

- (1) The proximity of the trial date;
- (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
- (3) The length of the continuance requested;
- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
- (5) The prejudice that parties or witnesses will suffer as a result of the continuance;
- (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;
- (7) The court's calendar and the impact of granting a continuance on other pending trials;
- (8) Whether trial counsel is engaged in another trial;
- (9) Whether all parties have stipulated to a continuance;
- (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and
- (11) Any other fact or circumstance relevant to the fair determination of the motion or application.

The Court has considered all the facts and circumstances relevant to the determination, including the eleven factors listed above. The Court finds that Defendants have established good cause pursuant to CRC 3.1132(c)(3) due to trial counsel’s scheduled maternity leave. No previous continuances have been sought. Defendants also sufficiently explain that co-lead counsel will be unavailable to try the case on the current trial date due to three other trial dates in November and December of 2026. Nonetheless, the Court is mindful of the prejudice any continuance will cause for Plaintiff Thomas Gerosin, who is 91 years old. The Court notes that although there is evidence establishing Mr. Gerosin’s age in the record, there is no evidence in the record that Mr. Gerosin currently suffers from ill health that would make preference necessary to prevent prejudice to him.

The Court intends to set a new trial date at today’s hearing which will accommodate counsel’s scheduled leave, and will also put trial as soon as reasonably possible thereafter. This will set the trial date approximately four to five months after the currently scheduled date. The parties are ordered to come prepared with available trial dates in March and April of 2027.

The motion is **GRANTED**. The Mandatory Settlement Conference and Trial dates are **VACATED**. Defendants submitted a proposed Order that will be modified to reflect the Court's ruling. Appearances are necessary on today's calendar.

**GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.**

**CASE NUMBER: 25CV-0209491**

**Tentative Ruling on Motion for Trial Preference:** Plaintiff Thomas Gerosin, as an individual and successor in interest to Betty Gerosin, moves pursuant to Code of Civil Procedure section 36 for an order granting trial setting preference in this matter on the grounds that Plaintiff is over the age of 70, that Plaintiff has a substantial interest in this case as a whole, and that Plaintiff's health makes preference necessary to prevent prejudice to Plaintiff's interest in the lawsuit. Defendants oppose the Motion.

Objections to Evidence: Defendants object to Paragraphs 1-3 of the Declaration of Megan Yarnall. The objections are overruled.

Merits: A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. CCP § 36(a).

As to element 1, Plaintiff has established that Plaintiff has a substantial interest in the action as a whole. Plaintiff is the surviving husband of Betty Gerosin, decedent in this action. He asserts both survivorship and individual claims. He and his late wife allege that they were both directly harmed by Defendants' conduct.

As to element 2, Plaintiff has not established that the health of Plaintiff is such that preference is necessary to prevent prejudicing Plaintiff's interest in the litigation.

The evidence submitted in support of this motion consists of an attorney declaration. This is permitted under CCP 36.5: "An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36." The declaration need not be from Plaintiff himself.

However, the declaration does not address "the medical diagnosis or prognosis of any party." Regarding Plaintiff's health, the attorney declaration only states: "As a nonagenarian [Plaintiff] faces health risks, physical limitations, and uncertainties that accompany advanced age." (Decl. Yarnall ¶ 2.) There is no specific evidence about any health problems of Plaintiff in particular, just about the risks associated with advanced age in general. No evidence or argument is presented regarding trial preference as a necessity to prevent prejudicing Plaintiff's interest, other than citing advanced age in general. The statute specifically requires the court to make a finding regarding the party's *health*. On this record, the Court does not have sufficient evidence to make a finding regarding Plaintiff's health. Therefore, the Motion is **DENIED**. Plaintiff's proposed order will be modified.

**GIUNTOLI VS. KAWASAKI MOTORS CORP. USA**

**CASE NUMBER: 25CV-0208649**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions (“OSC”) issued on June 3, 2026, to all parties and counsel for failure to file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Defendant filed a written response to the OSC. Plaintiff filed a Notice of Conditional Settlement on June 26, 2026. The OSC is DISHCARGED. No sanctions will be imposed. This matter has also been set for a review hearing regarding status of judgment/dismissal on **Monday, October 26, 2026 at 9:00 a.m. in Department 64**. That hearing date is confirmed. No appearances are necessary on today’s calendar.

**IN RE: MARTIN**

**CASE NUMBER: 26CV-0210283**

**Tentative Ruling on Petition for Change of Name:** Petitioner Anthony Zachary Martin seeks to change his name to Anthony Martin Mondragon. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

**POLLYCOVE VS. HOFER, ET AL.**

**CASE NUMBER: 25CV-0209224**

This matter is on calendar for hearing on Plaintiff Dean Michael Pollycove’s motion for an interlocutory judgment directing partition of real property by sale. On July 15, 2026, Plaintiff filed a Request for Dismissal of Entire Action. Today’s hearing is therefore dropped from calendar and all future dates are vacated. No appearances are necessary on today’s calendar.

**IN RE: RUIZ**

**CASE NUMBER: 26CV-0210640**

**Tentative Ruling on Petition for Change of Name:** Petitioner Denise Michelle Ruiz seeks an order changing her last name to Graham. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

**IN RE SYLVESTER**

**CASE NUMBER: 26CV-0210663**

**Tentative Ruling on Petition for Change of Name:** Petitioner Tyler Sylvester seeks to change the name of his minor daughter. Proof of publication has been filed. However, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Petitioner filed a Proof of Service on July 14, 2026, which shows personal service on July 7, 2026, which is just 13 days before the hearing. This is insufficient. The nonconsenting parent must receive notice at least 30 days before the hearing.

This matter is continued to **Tuesday, September 8, 2026, at 8:30 a.m. in Department 64** to permit timely service on the mother. Petitioner shall file an Amended Order to Show Cause (“Amended OSC”) for the continued hearing date. The Amended OSC must be personally served on the mother at least 30 days before the continued hearing date. No appearance is necessary on today’s calendar.

## TEMPLETON VS. GENERAL MOTORS, LLC

**CASE NUMBER: 22CV-0201169**

**Tentative Ruling on Motion for Attorney Fees and Costs:** Plaintiff Joshua Templeton moves for an award of attorney fees, costs and expenses in the amount of \$57,806.87, pursuant to a signed CCP 998 Offer to Compromise and Cal. Civ. Code § 1794(d). Defendant General Motors, LLC, opposes the motion on the grounds that it is untimely, and in the alternative, argue for a reduced award.

Timeliness: Defendant argues the motion must be denied outright as untimely. Defendant cites CRC Rule 3.1385(b) and argues that the motion was filed 323 days “after court-ordered, automatic dismissal following GM’s filing of a Notice of Settlement – compels its denial.” Defendant also cites *Hatlevig v. General Motors LLC* (Cal. App. 4th Dist., Div. 1, Feb. 17, 2026, D084360) 2026 WL 445030, which holds that a formal entered judgment or signed dismissal order is not required to start the 180-day clock for determining the timeliness of the fee motion. Instead, a court-ordered or automatic dismissal under CRC 3.1385(b) (when a plaintiff fails to file a dismissal after settlement) constitutes a “judgment” sufficient to trigger the deadline under rule 3.1702.

Here, there was no court-ordered or automatic dismissal under CRC 3.1385(b). Instead, the Court executed an Order pursuant to the parties’ stipulation, which provided that the case was dismissed with prejudice, and that the court retains jurisdiction pursuant to CCP § 664.6 to enforce settlement including Plaintiff’s attorney fees, costs and expenses. No deadline is included in the order. The Court declines to deny the motion as untimely.

Request for Judicial Notice: Plaintiff requests the court take judicial notice of minute orders, tentative rulings, and stipulation and orders from various Los Angeles Superior Court cases. The request is denied because those documents have not been provided. They are not attached to either the Angel Baker Declaration or the Payam Shahian Declaration and do not appear on the Index of Exhibits submitted in support of Plaintiff’s Motion.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney’s fees. Civ. C. § 1794(d). The attorney’s fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney’s fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney’s fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party’s attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court’s focus in evaluating the fee request should be to provide a fee award reasonably

designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

GM asks the Court to strike or reduce 45.3 hours for tasks including drafting the complaint, discovery, meet and confer, motions, and trial documents which is argues are "templated" and substantially similar to other work product which GM has already recovered for. GM fails to cite controlling authority which would compel this result and the Court finds that the time spent on these tasks appears reasonable based on the detailed billing records provided. However, the Court declines to award attorney time incurred to remedy Plaintiff's failure to appear at the trial on February 26, 2025. On that date, the Court dismissed this action without prejudice pursuant to CCP § 581. The dismissal was later set aside pursuant to CCP § 473(b). Given that the failure to appear at trial and resulting dismissal was due to Plaintiff's Counsel's admitted mistake, it would be unreasonable to require Defendant to pay attorney fees on the time incurred attempting to remedy the mistake. Therefore, 21.4 hours billed for the motion set aside dismissal (12.1 hours), and to the *ex parte* motion thereon (9.3 hours) are stricken.

Sixteen timekeepers billed a total of 71.2 hours to this matter. With the reduction of 21.4 hours resulting from the failure to appear at trial, total time awarded is 49.8 attorney hours.

*Reasonableness of Rates:* A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. However, the court may also consider the attorney's skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff's counsel seeks approval of rates ranging from \$325-675 per hour. Counsel provides details on each attorney's education and experience. Counsel also supports their requested rates by referring to a rate survey as well as other courts where their rates have been approved. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

*Multiplier:* The Court is not persuaded that a 1.35 multiplier is warranted on this record. A multiplier may be awarded based on the novelty and difficulty of the issues, the skill displayed, the extent to which the litigation precluded other employment, and the contingent nature of the fee award. *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132. An enhancement is discretionary, not automatic, even in cases achieving a favorable result. *Mikhaeilpoor v. BMW of North America, LLC*, 48 Cal.App.5th 240, 247-248.

Plaintiff has not shown this case presented novel or unusually difficult issues; it resolved through



a standard 998 offer process common to Song-Beverly litigation of this kind. Nor has Plaintiff shown that this representation precluded counsel from accepting other work. As to contingent risk, Counsel's declaration does not persuasively distinguish the risk in this case from the risk inherent in any Song-Beverly contingency matter, where fee-shifting is mandatory and the primary contingency is the amount, not the entitlement, of recovery.

As to delay in payment, the Court recognizes this is a permissible basis for enhancement in an appropriate case. *Ketchum, supra*, 24 Cal.4th at p. 1138. However, the record reflects significant periods of inactivity in the litigation, including gaps of several months with no billed time, which tempers the weight the Court is inclined to give this factor. Accordingly, the Court declines to apply a multiplier.

*Anticipated Time:* Plaintiff seeks an additional \$1,500 “for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply, and attend the hearing on this Motion.” A breakdown of the hourly rate and time to be spent is not provided in the brief or the supporting declaration, so the Court cannot make a determination on the reasonableness of the amount requested. Additionally, no reply brief has been filed by the deadline set forth in CCP § 1005. Therefore, the additional \$1,500 will not be awarded.

*Costs and Expenses:* The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). The moving party bears the burden of establishing that claimed costs were reasonably and actually incurred. Plaintiff has provided a detailed table of \$5,164.82 in costs and expenses at Exhibit 1 to the Declaration of Payam Shahian (page 30). Defendant objects to the costs as not sufficiently detailed. The Court finds that the costs are sufficiently detailed and are recoverable, with the exception of \$545.00 paid to Veritext on April 14, 2025 for “California Region for Attending Hearing on Plaintiff’s Motion to Set Aside Dismissal,” for the same reasons discussed above with respect to the attorney fee recovery on the motion to set aside dismissal. Therefore, Costs in the amount of \$4,619.82 are awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$19,920.00 (49.8 hours at \$400 per hour) and costs of \$4,619.82 are awarded, for a total of \$24,539.82. A proposed order has been lodged and will be modified.

## **U.S BANK NATIONAL ASSOCIATION VS. HASTINGS, ET AL.**

**CASE NUMBER: 24CV-0205776**

**Tentative Ruling on Order to Show Cause Re Sanctions:** An Order to Show Cause Re: Sanctions (“OSC”) issued on June 4, 2026, to Plaintiff and counsel for failure to appear on May 26, 2026, failure to timely prosecute, and failure to comply with local rules regarding a status update. Plaintiff has filed a late status statement indicating that the matter has been on a loss mitigation hold. Plaintiff also states the failure to appear was inadvertent. Plaintiff requests an additional 90 days to resolve this matter. Today’s hearing on the Order to Show Cause is continued to **Monday, October 19, 2026 at 9:00 a.m. in Department 64**. If default judgment has not been requested by that date, Plaintiff is ordered to file a status statement at least five court days prior to the hearing. No appearances are necessary on today’s calendar.

**IN RE: VINCENT**

**CASE NUMBER: 26CV-0210689**

**Tentative Ruling on Petition for Change of Name:** Petitioner Kennedy Rose Vincent seeks an order changing her name to Rosanthemum Shekhinah Hallelujah Torres. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

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**9:00 a.m. Review Hearings**

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**ABREU, ET AL. VS. ROSEBURG FOREST PRODUCTS, CO.**

**CASE NUMBER: 26CV-0209729**

This matter is on calendar for confirmation of deposit for 21 minor's compromise petitions that were granted on May 5, 2026. On June 16, 2026, Plaintiffs filed an Acknowledgement of Receipt of Order and Funds for Deposit in Blocked Account for the initial deposit for each minor as well as the second deposit for each minor. The accounts were opened and funded with both amounts on June 9, 2026. Plaintiffs' counsel filed a status statement indicating that all named minors named in the matter have either had their minor's compromise petitions approved and have confirmation of deposit on file or have been dismissed from the matter. Because the settlement is being funded in three installments, with the last being funded on or before February 28, 2027, the matter will need to be on calendar again for confirmation of the third deposit. Of the minors who had their petitions approved at the May 5, 2026 hearing, Martell Vongsavan, will reach the age of eighteen years prior to the third deposit funding. There are surely additional minors in the same situation that had expedited petitions approved. Plaintiffs' counsel will still need to provide proof that the third deposit reached the minors. The matter is continued to **Monday, April 26, 2027 at 9:00 a.m. in Department 64** for confirmation of third deposit. Plaintiffs' counsel is ordered to file a status statement no less than five court days prior to the hearing. No appearance is necessary on today's calendar.

**CENIZA, ET AL. VS. STATE OF CALIFORNIA (DEPARTMENT OF TRANSPORTATION)**

**CASE NUMBER: 24CV-0205486**

This matter is on calendar for a trial setting conference. The Court designates this matter as exempt from case disposition time standards. Both sides have posted jury fees. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. Appearances are necessary on today's calendar.

**GATES VS. SHASTA COUNTY**

**CASE NUMBER: 26CV-0209985**

This matter is on calendar for review regarding status of the writ. Defendant's Demurrer was sustained with leave to amend on April 27, 2026. Plaintiff was granted 10 days leave to amend. Plaintiff's time to file an Amended Complaint has run. No Amended Complaint has been filed. Defendant filed a status statement on July 15, 2026, which states that they have been unable to serve the Notice of Entry of Order because the mail has been returned undeliverable. Defendant has not filed a motion to dismiss the entire action and for entry of judgment. CRC 3.1320(h); CCP 581(f)(2). An appearance is necessary on today's calendar to discuss the status of the case.

**GUERRA VS. KNAUF INSULATION, INC.**

**CASE NUMBER: 24CV-0206404**

This matter is on calendar for review regarding status of class action settlement. No motion for preliminary approval has been noticed for hearing. No status statements have been filed. An appearance is necessary on today's calendar to provide a status of the case.

**MIDLAND CREDIT MANAGEMENT, INC. VS. WEBB**

**CASE NUMBER: 26CVG-00137**

This matter is on calendar for review regarding status of responsive pleadings. On June 8, 2026, the Court granted Defendant's Motion to Set Aside Default. Defendant has filed an Answer and proof of service. Appearances are necessary on today's calendar by all parties to discuss trial setting.

**NUNEZ VS. JURIN, ET AL.**

**CASE NUMBER: 23CV-0203580**

**DISCLOSURE:** Prior to taking the bench, Judge Birss worked in private practice as an attorney. Judge Birss previously represented Ronald Jurin and Wendy Jurin in separate and unrelated proceedings. His representation of both falls outside the time period requiring recusal. That prior representation does not impact his ability to be fair and impartial.

This matter is on calendar for review regarding status of judgment/dismissal. Defendant Wendy Jurin has been dismissed from this matter. The remaining Defendants: Ronald Jurin and Trinity River Construction, were defaulted in April of 2024. No request for default judgment has been filed despite the passage of over two years. Plaintiff's counsel has filed a status report requesting an additional forty-five days to submit the default prove up packet. The matter is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 64** for review regarding status of judgment/dismissal. No further continuances will be granted and the Court intends to issue an Order to Show Cause Re: Sanctions if the default prove up packet is not submitted prior to the next court date. No appearance is necessary on today's calendar.

**THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$4,000.00 U.S. CURRENCY**

**CASE NUMBER: 23CV-0203182**

This asset forfeiture matter is on calendar for review regarding status. A Claim Opposing Forfeiture was filed on September 11, 2023 by William Edward Dodd. A proof of service is on file. A Petition for Forfeiture in Rem has been filed. A proof of service is on file. An appearance is necessary on today's calendar to provide the Court with a status of the underlying criminal proceeding.

**WESTLUND, ET AL. VS. PINEDA, ET AL.**

**CASE NUMBER: 25CV-0207961**

This matter is on calendar for a trial setting conference. The parties filed a stipulation on May 12, 2026 that a tentative settlement had been reached. No Notice of Conditional Settlement or Dismissal has been filed. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than December 15, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. An appearance is necessary on today's calendar.